M/S ROOPAM CONSTRUCTION

[Firm Address, City, Rajasthan – PIN] | Tel: [Phone] | Email: [Email]

Date: **05.04.2026**

Through: Registered Post / Speed Post with Acknowledgement Due

To,
The Secretary / Authorized Signatory,
Pitambara Peeth Trust, Datia (Rajasthan),
[Full Address of Trust],
Rajasthan.

> **Subject: Reply to your Legal Notice dated [Date of Notice] — Construction Contract — Project: [Project Name / Site Address]**

Sir/Madam,

We, **M/s Roopam Construction** (hereinafter "the Contractor"), through the undersigned Proprietor/Partner, hereby tender this formal reply to the legal notice issued by your Trust (hereinafter "the Trust") dated [Date of Notice], received by us on [Date of Receipt].

At the outset, we **strongly deny and refute** each and every allegation, claim, and insinuation made in the said notice as being false, frivolous, misconceived, and contrary to the actual facts and the terms of the contract. The notice is a deliberate attempt to shift the Trust's own contractual failures onto our firm. We reply point-wise as under:

PRELIMINARY OBJECTION

1. Notice is Premature, Misconceived, and Mala Fide. The Trust itself is in continuous breach of its primary contractual obligations and cannot take shelter behind a legal notice to cover its own defaults. The notice is therefore liable to be withdrawn forthwith.

POINT-WISE REPLY

2. Regarding Delay in Supply of Approved Drawings — Primary Breach by the Trust.

It is a matter of undisputed record that:

- The scheduled date of commencement of work was **01.05.2024**.
- The approved architectural/structural drawings were supplied by the Trust only on **22.02.2025** — a delay of approximately **10 (ten) months** from the scheduled start date.

- **Two-thirds of the originally scheduled project period** was consumed by the Trust's own failure to provide the mandatory approved drawings.

It is a fundamental principle of construction contracts that the Contractor cannot be expected to commence or execute structural work without approved drawings. The Trust's failure to supply drawings in time constitutes a **primary breach** of its contractual obligations. We call upon the Trust to explain how it expects our firm to complete the project within the original schedule when the Trust itself withheld the approved drawings for 10 months.

3. Regarding Compliance with Technical and Statutory Requirements.

We categorically deny the allegation that our firm failed to maintain requisite technical staff, field testing laboratory, third-party quality assurance, or workman insurance. The facts are:

- Our firm has at all times maintained qualified technical/field engineering staff at the project site;
- A field testing laboratory has been operational and maintained throughout the project duration;
- Third-party quality assurance arrangements have been timely and regularly maintained; and
- Workman insurance has been duly arranged and maintained — *as evidenced by the insurance documents enclosed herewith.*

The fact that the project has progressed to its current stage is itself conclusive proof that all statutory and contractual compliances were in place.

4. Regarding the Incident of 19.11.2025 — Biased and Unilateral Assessment by the Trust.

- The cause of the mishap has **not been independently or expertly investigated** to date. No formal inquiry by a qualified structural/forensic expert has been conducted.
- The Trust's assessment is **unilateral, biased, and without any technical basis**.
- Even assuming (which is denied) that there was any momentary absence of a field engineer, this cannot be the sole or proximate cause of the mishap without a proper expert inquiry.
- After the mishap, the Trust itself **instructed our firm to stop all work** pending supply of revised drawings — which have **not been provided to date**.

The Trust cannot, on one hand, instruct stoppage of work pending revised drawings and, on the other hand, allege breach of contract by our firm for non-completion.

5. Regarding Breach of Contract — Principle of Reciprocal Promises.

We draw the Trust's attention to the settled legal position under the **Indian Contract Act, 1872**:

- **Section 51** — When a contract consists of reciprocal promises, the promisor need not perform his promise unless the other party is ready and willing to perform its reciprocal promise.

- **Section 53** — When a party to a contract prevents the other from performing, the contract becomes voidable at the option of the party so prevented.
- **Section 55** — Where a party fails to perform within the agreed time, the other party is entitled to compensation for the resulting delay.

The Trust's obligation to supply approved drawings is a *condition precedent* to our firm's obligation to execute the structural work. By withholding drawings for 10 months and thereafter failing to supply revised drawings post-mishap, the Trust has: (a) prevented our firm from performing; (b) committed a continuous breach of contract; and (c) rendered the original completion schedule impossible to adhere to.

We have not breached the contract. It is the Trust that has breached the contract, and the breach is ongoing.

6. Regarding Time Extension — Formal Demand.

Our firm is entitled to and hereby formally demands a **provisional time extension** commensurate with:

- The 10-month delay in supply of original approved drawings; and
- The period of work stoppage from 19.11.2025 onwards due to non-supply of revised drawings.

Unless and until the revised drawings are supplied and a formal time extension is granted, our firm shall not be bound to complete the work within the original scheduled completion date, and no penalty, liquidated damages, or adverse action shall be maintainable against our firm for the period of delay attributable to the Trust.

7. Regarding Pending Bills and Payments.

The Trust has failed to release legitimate dues of our firm. The following amounts are outstanding and are hereby formally demanded:

S.No.	Description	Amount
1.	Bill for work executed since last running bill	Rs. 24,00,000/- *(Rs. Twenty-Four Lakhs)*
2.	Architectural consultancy fee for revised drawings prepared by our firm (Rs. 7,50,000/- + 18% GST)	Rs. 8,85,000/- *(Rs. Eight Lakhs Eighty-Five Thousand)*
	Total Amount Due	**Rs. 32,85,000/-** ***(Rupees Thirty-Two Lakhs Eighty-Five Thousand only)***

The Trust is hereby called upon to release the above payments within **15 (fifteen) days** of receipt of this reply, failing which our firm shall initiate appropriate legal proceedings for recovery with interest @ 18% per annum from the date of default.

8. Regarding Quantities Beyond Schedule in Revised Drawings.

We put the Trust on notice that if the revised drawings (when eventually supplied) contain quantities beyond the original schedule of quantities, the same shall be executed by our firm at **revised rates** as per the terms of the contract. Market rates for construction materials and labour have escalated significantly and our firm shall not be bound by the original rates for any additional quantities.

9. Regarding Threatened Illegal Action — Claim for Liquidated Damages.

Any illegal, coercive, or unilateral action taken by the Trust against our firm — including but not limited to encashment of bank guarantee, forfeiture of security deposit, blacklisting, or termination of contract — shall be **wholly unjustified and actionable**. Our firm shall be entitled to recover liquidated damages and compensation from the Trust for any loss, damage, or injury caused by such illegal action. Our firm reserves all rights to approach the appropriate court/arbitral tribunal for relief.

DEMANDS AND PRAYERS

In view of the foregoing, we call upon the Trust to:

1. **Withdraw** the impugned legal notice forthwith as it is based on false and misconceived allegations.
2. **Supply the revised approved drawings** immediately to enable our firm to resume work.
3. **Grant a formal time extension** for the period of delay caused by the Trust's own defaults.
4. **Release the pending payment** of **Rs. 32,85,000/-** (Rupees Thirty-Two Lakhs Eighty-Five Thousand only) within 15 days.
5. **Refrain from any illegal action** against our firm, its bank guarantee, security deposit, or reputation.
6. **Acknowledge** that the breach of contract, if any, is on the part of the Trust and not our firm.

Failure to comply within **15 (fifteen) days** shall leave our firm with no option but to initiate appropriate legal proceedings before the competent court/arbitral forum, including claims for: recovery of dues with interest @ 18% p.a.; compensation for loss of business and reputation; liquidated damages for the Trust's breach; and any other relief as may be deemed fit.

ENCLOSURES

1. Copy of the impugned legal notice.
2. Proof of supply of drawings dated 22.02.2025 (from correspondence records).
3. Copies of earlier correspondence requesting drawings.
4. Insurance documents (Workman Insurance Policy).
5. Bill for Rs. 24,00,000/- for work executed since last running bill.
6. Bill for Rs. 7,50,000/- + 18% GST for architectural consultancy.
7. Any other relevant correspondence.

Without prejudice to all rights and remedies available to our firm in law and equity.

Yours faithfully,

_____

For M/s Roopam Construction

Proprietor / Partner

Name: _____

Date: 05.04.2026

Place: _____, Rajasthan

Note: *Insert actual notice date, project name, Trust's full address, and firm's address in the letterhead before dispatch. Send via Registered Post / Speed Post with Acknowledgement Due. Retain proof of dispatch.*